

SUPPORT ANIMAL POLICY

Association of Apartment Owners of Nā Hale O Mākena
Owner & Resident Notice — Rules, Approval Process & How to Request

This is a review draft for discussion only.

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Terminology adopted by the Association. This Policy uses the term “**Support Animal**.” The Association of Apartment Owners of Nā Hale O Mākena has **adopted “Support Animal” as its standard term**, and it is **synonymous with “assistance animal”** as that term is used in Hawaii Administrative Rules §12-46-306, Hawaii Revised Statutes Chapter 515, and the federal Fair Housing Act. “Support Animal” carries the same meaning and the same legal scope: it includes service animals, assistance animals, comfort animals, and emotional-support animals. **The change of term is one of naming only** — it narrows no right, removes no protection, and imposes no additional requirement. Wherever a statute, regulation, court or agency decision, form, or letter uses “assistance animal,” that term and “Support Animal” have the same meaning in this Policy and in the Association’s House Rules.

1 About this policy and who it covers

The Association of Apartment Owners of Nā Hale O Mākena (the “Association”) values all of its members, tenants, and guests, including those with Support Animals. The Association complies with fair-housing law — Hawaii Revised Statutes Chapter 515, Hawaii Administrative Rules §12-46-306, and the federal Fair Housing Act (42 U.S.C. §3604(f)) — which require that individuals with disabilities be provided reasonable accommodations that may be necessary for the equal enjoyment and use of their housing.

The Board of Directors has determined that rules governing Support Animals are necessary to administer this accommodation in a fair, systematic, and impartial manner. This Support Animal Policy is issued under the Board’s authority pursuant to Hawaii Revised Statutes Chapter 514B, and the Declaration, the Bylaws (§10.7), and the House Rules of the Association, each as amended.

The Association — through the Resident Manager and the Board of Directors — administers and enforces this policy.

These rules are subject to change at any time by the Board within the framework of the law. **If any provision here appears to conflict with a legal requirement, please bring it to the Association’s attention right away** through the Resident Manager, and it will be reviewed and corrected as appropriate.

This policy applies to all owners, and to owners’ visitors, guests, and tenants, at Nā Hale O Mākena.

A. What is a Support Animal?

As the Hawaii Civil Rights Commission explains, Support Animals are animals that work, assist, or perform tasks for the benefit of a person with a disability. They can also be animals that provide emotional support. Support Animals can include service animals, emotional-support animals, therapy animals, and comfort animals. A Support Animal does not have to be a dog — cats, birds, rabbits, and other animals have been recognized as Support Animals.

Type of animal — subject to Board review. Although a Support Animal need not be a dog, the **species and type of any animal to be kept on the property is subject to Board review.** With a request, the requester must show a **disability-related need for the specific animal** requested. The animal must comply with all Maui County ordinances and any other lawful restrictions on the keeping of animals, and must not pose a direct threat to health or safety or cause substantial physical damage that cannot be reduced by reasonable means. The Board evaluates each request individually and may deny an animal on these grounds; consistent with fair-housing law, it does not deny an animal solely because of its species or breed.

Some animals cannot be approved — even as a Support Animal. Two bodies of public law limit which animals may be kept on the property, regardless of Support-Animal status:

- **Farm animals, livestock, and poultry** — cattle, horses, goats, sheep, pigs (including pot-bellied pigs), llamas, alpacas, chickens, roosters, turkeys, ducks, and geese — may not be kept on the property. Maui County zoning permits the keeping of livestock and poultry only in the Agricultural and Rural districts, not in the urban residential/apartment district in which Nā Hale O Mākena is located.
- **Snakes, invasive species, and other prohibited exotic animals** are illegal to bring into or possess anywhere in Hawaii under State invasive-species law (Hawaii Administrative Rules chapter 4-71 and Hawaii Revised Statutes chapter 150A); certain other non-domestic animals are allowed only by State permit.

Because these animals are prohibited by law, the Association cannot approve them as Support Animals. This narrows no right: fair-housing law does not require a housing provider to permit an animal that is prohibited by law, or that is not a species commonly kept in the home. The Association will continue to evaluate every request for an ordinary assistance animal (such as a dog or cat) individually, and will not deny an animal solely because of its breed. A fuller statement of the governing law appears in the Association’s Legal Reference (Governing Statutes & Regulations), section 2.8.

B. Who is a person with a disability?

As the Hawaii Civil Rights Commission explains, a person with a disability who may request the use of a Support Animal is a person who has a physical or mental impairment that substantially limits one or more major life activities. The person who needs the Support Animal — also called the “handler” — may be a resident, an owner, or a guest.

2 Please read this before you bring any animal onto the property

Nā Hale O Mākena does not allow pets. No dogs, cats, or other pet animals may be kept anywhere on the property. Only fish in an aquarium are permitted as pets.

A Support Animal is not a pet. A Support Animal is a separate category, required by a person with a disability, and it is permitted on the property as a reasonable accommodation under Hawaii and federal fair-housing law. The pet rule and the Support Animal rule do not conflict: a pet is kept by choice, while a Support

Animal is needed for a disability — so the “no pets” rule simply does not reach a Support Animal that has been approved under this policy.

Approval comes first — before the animal arrives. If you have or intend to have a Support Animal, you must **submit a request and receive the Board’s approval before you bring the animal onto the property.** Do not move the animal in and request approval afterward. Bringing an unapproved animal onto the property is a violation of the House Rules, even if the animal would have qualified. (One narrow exception for short-term guests appears in Section 5.)

3 The rules your Support Animal must follow

An approved Support Animal is welcome. In return, the person who keeps it (the “handler”) is responsible for the animal’s behavior at all times. These rules apply to the animal’s conduct, not to its type or breed:

- **Leashed or tethered outside your unit.** Whenever the animal is outside your unit — in any common area, hallway, lobby, walkway, or grounds — it must be on a leash, tethered, caged, or carried and kept under your control. The leash or tether must be **no more than six (6) feet** and held in your hand; an **electric shock collar is not a substitute** for a leash or harness. See the box below if your disability makes leashing impracticable.
- **Never unattended.** The animal must never be allowed to roam free, and must not be left unattended, anywhere on the common elements.
- **Coming and going.** When entering or leaving the property, the animal must be carried, in an approved carrier, or on a short hand-held leash.
- **At the pool and cabana.** In the pool and cabana area, the animal must be under your control and may be on the deck, but a **dog may not enter the swimming pool.** The animal is **absolutely prohibited from urinating or defecating in the pool or cabana areas**; even an unintended or accidental incident may be subject to a fine.
- **Noise — the animal must not be heard.** The animal must not be audible from any adjacent unit, the lobby, any hallway or walkway outside your unit, or in the pool and cabana area or any other common area, whether you are home or not. This is a firm standard, not a question of “excessive” noise: barking, howling, or other sounds that carry beyond your unit are not permitted.
- **Waste.** Clean up after the animal immediately: carry a bag, pick up the waste, seal the bag, and deposit it in a trash container. Do not let waste accumulate, and clean lanais and patios so they do not create odors that disturb others.
- **No washing on the common elements.** The animal may not be washed anywhere on the property except inside your own unit.
- **No nuisance or aggression.** The animal must not create a nuisance through odor, and must not behave aggressively toward any person or animal.

- **Licensing & health.** Keep the animal licensed with the County of Maui if required, and keep its vaccinations current. Provide documentation on request.
- **Responsibility.** You are responsible for any injury or property damage the animal causes.

Relief areas. At this time the Board has not authorized any relief area on the property. Until it does, all animal relief must occur either within the owner's unit or off the property — relieving an animal anywhere on the common elements is not permitted. The Association may designate one or more relief areas in the future, and may change, add, or remove them from time to time; any designated area and its rules will be communicated to all Support Animal owners. In all cases, waste must be picked up immediately and disposed of properly, and the animal must be leashed or under effective control while outside your unit.

If your animal will be off-leash outside your unit. Leashing or tethering is the rule. If your disability makes physical control impracticable, you may instead keep the animal under **voice or signal control** — but before the animal goes untethered on property, the Association may require **both**: (1) a letter from your treating health-care professional, mental-health professional, or social worker stating that your disability makes leashing or tethering impracticable (only if that is not already obvious — and the letter need not state your diagnosis); and (2) a brief demonstration to the Resident Manager that you can keep the animal under effective voice or signal control. Effective control is required at all times; an animal that gets loose or does not respond may not go untethered.

4 What happens if the rules are not followed

The Association does not remove a Support Animal lightly, and never because of its breed, size, or weight as such (but see paragraph 3 regarding property damage). If a problem arises with the animal's behavior:

1. You will receive **written notice** describing the specific problem.
2. You will be given a **reasonable opportunity to correct it** by measures short of removing the animal.
3. Removal may be required **only** if the problem cannot be corrected — that is, if the animal is out of control and not effectively controlled, poses a direct threat to health or safety that cannot be reduced by other means, or **would cause, or may reasonably be expected to cause, substantial physical damage to units, common elements, or the property of others that cannot be reduced by other means.** An individualized assessment of that risk may take the specific animal's size or weight into account; size or weight is never a basis for removal by itself.
4. Rule violations may also be enforced through the House Rules, including fines, following the House Rules procedure.

5 How to get your Support Animal approved — step by step

Here is the whole process, from request to move-in:

- 1 Submit your request — before the animal comes on property.** Complete the **Support Animal Request Form** (a separate fillable form accompanies this notice) and give it to the Resident Manager. You may also submit the same information in any written form.
- 2 Provide verification — only if we ask, and only if needed.** If your disability, or your need for the animal, is not obvious, the Association may ask you for a short letter from your treating health-care professional, mental-health professional, or social worker confirming just two things: that you have a disability, and that the animal helps with it. **We will not ask for your diagnosis, your medical records, access to your doctor, or proof that the animal is trained or certified.**
- 3 The Board decides.** The Association will acknowledge your request within **five business days** and decide within **thirty days** (with one short extension only if verification is still outstanding, and we will tell you if that happens). You will receive the decision in writing.
- 4 On approval, finish the paperwork.** You will sign a short Support Animal Agreement confirming the conduct rules in Section 3, and provide proof of County licensing (if required) and current vaccinations.
- 5 Your animal may come on property.** Once approved and the paperwork is complete, your Support Animal may live with you at Nā Hale O Mākena. You will not be asked to re-verify a disability that is established and ongoing.

What the Association may not ask you. By law, the Association may not ask for your diagnosis or the nature or severity of your disability, may not ask for medical records or to contact your health-care provider, and may not require that your animal be professionally trained, certified, or registered. No online “registration” or certificate is required or recognized, and none is a substitute for the simple verification described in Step 2. Because a Support Animal is not a pet, the Association charges no pet fee, pet rent, or pet deposit for it; you remain responsible for any damage the animal causes.

Short-term guests. A resident’s guest who needs a Support Animal for a short stay does not have to go through the full Board process. The Resident Manager may approve a guest’s Support Animal on a **case-by-case basis for up to fourteen (14) days** — particularly where the guest’s disability and need for the animal are readily apparent, in which case no verification is requested. The animal must follow all conduct rules in Section 3 while on property. A stay expected to exceed two weeks, or a repeated pattern of guest stays, is handled through the Board’s normal approval process above.

6 Questions

Direct any question about this policy or the request process to the Resident Manager at **managernhom@hotmail.com**. Keep this notice with your association documents.